

**IN THE UNITED STATES BANKRUPTCY COURT
FOR THE SOUTHERN DISTRICT OF TEXAS
HOUSTON DIVISION**

	X	
	:	
In re:	:	Chapter 11
	:	
OFFICE PROPERTIES INCOME TRUST, <i>et al.</i> ,	:	Case No. 25-90530 (CML)
	:	
Debtors. ¹	:	(Jointly Administered)
	:	
	X	

**NOTICE OF FILING OF DEBTORS' DEMONSTRATIVE
FOR HEARING ON NOVEMBER 3, 2025**

Attached to this Notice as **Exhibit A** is a copy of the Debtors' demonstrative in connection with the hearing in the above-captioned cases set for November 3, 2025.

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¹ A complete list of the Debtors in the Chapter 11 Cases may be obtained on the website of the Debtors' claims and noticing agent at <https://restructuring.ra.kroll.com/OPI>. The Debtors' mailing address is Two Newton Place, 255 Washington Street, Suite 300, Newton, Massachusetts 02458-1634.

Dated: November 3, 2025
Houston, Texas

Respectfully submitted,

/s/ Timothy A. ("Tad") Davidson II

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*Proposed Attorneys for the Debtors
and Debtors in Possession*

CERTIFICATE OF SERVICE

I certify that on November 3, 2025, a true and correct copy of the foregoing document was served by the Electronic Case Filing System for the United States Bankruptcy Court for the Southern District of Texas on those parties registered to receive electronic notices.

/s/ Timothy A. ("Tad") Davidson II

Timothy A. ("Tad") Davidson II

EXHIBIT A

Office Properties Income Trust

Pearranged Chapter 11 Cases
First Day Demonstrative

November 3, 2025

Roadmap

- 01**  **Key Highlights and Background**
- 02**  **Prepetition Capital Structure**
- 03**  **Events Leading to Chapter 11**
- 04**  **The Debtors' Prearranged Restructuring**
- 05**  **Restructuring Support Agreement Milestones**

Key Highlights



The Debtors

- Office Properties Income Trust (“**OPI**,” together with its debtor subsidiaries, the “**Debtors**” and together with the Debtors’ non-debtor subsidiaries, the “**Company**”)
- **73 Debtor entities**
- **7 Non-Debtor CMBS entities**
- **1 Non-Debtor JV**



Business and Portfolio

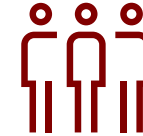
- Real estate investment trust (“**REIT**”) that owns and leases high-quality office and mixed-use properties in select, growth-oriented U.S. markets

Company: 124 properties in 29 states; 17.2 million rentable square feet

- 77.5% currently leased

Debtors: 117 properties in 28 states; 15.9 million rentable square feet

- 75.7% currently leased



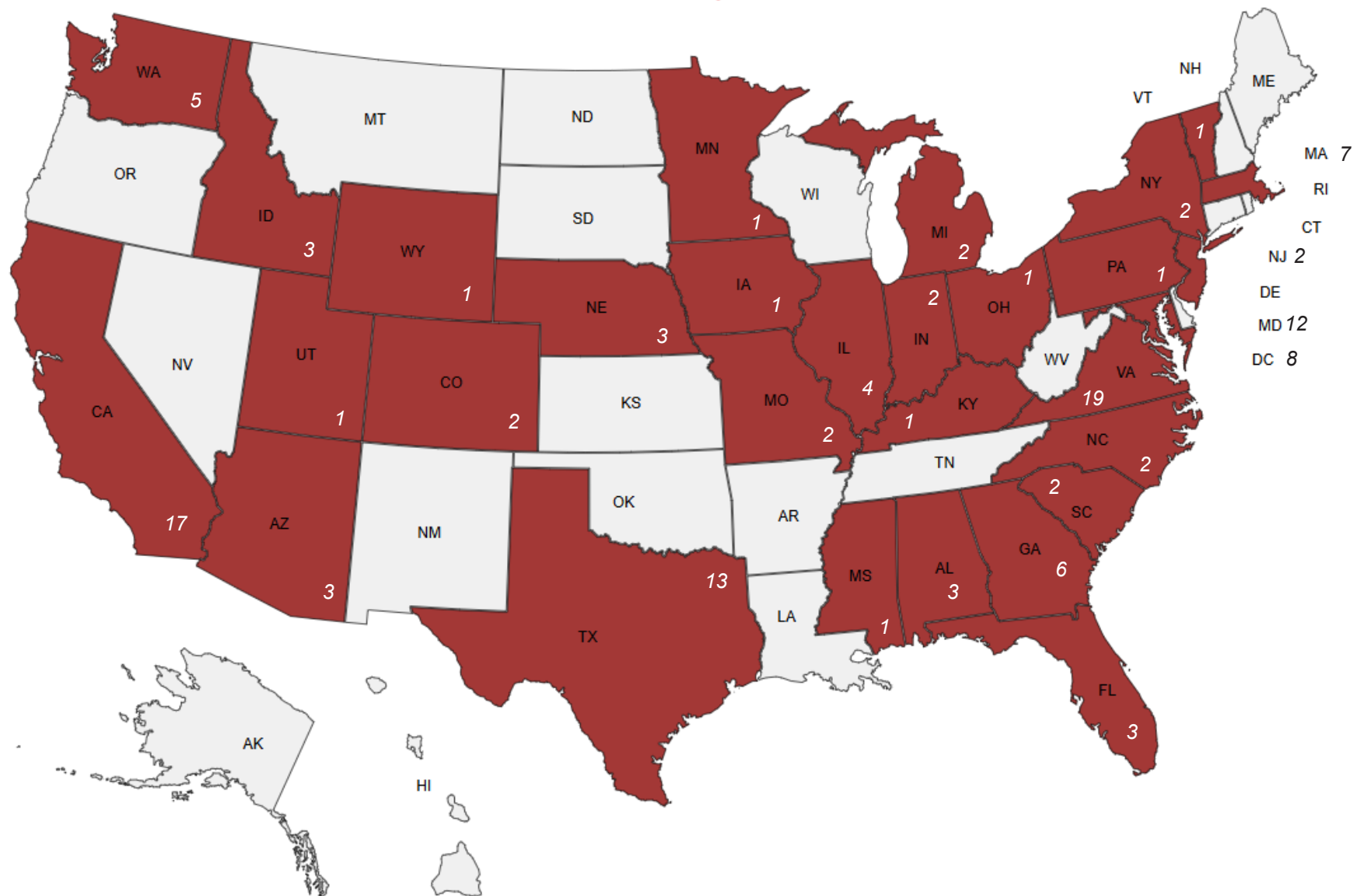
Management and Operations

- The Company has no employees and is managed by the RMR Group LLC (“**RMR**”), pursuant to a business management agreement and a property management agreement

Background: Overview

- The Company is a Maryland REIT formed in 2009. The Company is focused on owning and leasing high-quality office and mixed-use office properties in select, growth-oriented markets throughout the United States.
- The Company operates in one business segment: ownership of real estate properties. The Company's business strategy has centered on increasing rents and cash flows from its existing portfolio by:
 - entering into new or renewal leases;
 - repositioning and redevelopment activities; and
 - growing through its acquisition, disposition, and financing policies under its investment strategy.
- OPI is managed by RMR, a leading U.S. alternative asset management company with more than 35 years of institutional experience in buying, selling, financing and operating commercial real estate.

Background: Property Portfolio Map



Debtors' Board and Key Management Team Members

Senior Management

President and Chief Operating Officer	Yael Duffy
Chief Financial Officer, Treasurer and Assistant Secretary	Brian E. Donley
Chief Restructuring Officer	John Castellano
Secretary	Jennifer B. Clark

Board of Trustees

Managing Trustee (Chair)	Adam D. Portnoy
Managing Trustee	Jennifer B. Clark
Lead Independent Trustee	Elena Poptodorova
Independent Trustee	Donna D. Fraiche
Independent Trustee	Barbara D. Gilmore
Independent Trustee	William A. Lamkin
Independent Trustee	Jeffrey P. Somers
Independent Trustee	Mark A. Talley
Independent Trustee	Tim Pohl

Key Subsidiary Directors

Independent Director (Credit Facility Subsidiary Obligors)	Kristine E. Eppes
Independent Director (Credit Facility Subsidiary Obligors)	Michelle A. Dreyer
Independent Trustee (March 2027 Notes Subsidiary Obligors)	Jill Frizzley
Independent Trustee (September 2029 Notes Subsidiary Obligors)	Patrick Bartels

Debtors' and Key Stakeholders' Professionals

Party	Advisors
Debtors	Latham & Watkins LLP – Proposed Co-Counsel (Ray C. Schrock, Andrew M. Parlen, Anupama Yerramalli, Ashley Gherlone Pezzi, Anthony R. Joseph) Hunton Andrews Kurth LLP – Proposed Co-Counsel (Timothy A. (Tad) Davidson II, Ashley L. Harper, Philip M. Guffy) Moelis & Company – Proposed Investment Banker (Barak Klein, Rachel Murray) AlixPartners – Proposed Financial Advisor (John Castellano) Quinn, Emanuel, Urquhart & Sullivan LLP – Proposed Special Investigation Counsel (Susheel Kirpalani, Samuel Nitze, Kate Scherling, Daniel Holzman)
Ad hoc group of holders of the Debtors' 9.00% notes due September 2029 (the " September 2029 Notes ") and such ad hoc group, the " September 2029 Ad Hoc Group ")	White & Case LLP –Counsel (Brian Pfeiffer, Aaron Colodny, Andrew Costello) Houlihan Lokey –Investment Banker (Saul Burian, Marcus Bellows, Tanya Wong)
Ad hoc group of holders of the Debtors' 3.250% notes due March 2027 (the " March 2027 Notes ") and such ad hoc group, the " March 2027 Ad Hoc Group ")	Milbank LLP – Counsel (Dennis F. Dunne, Abhilash M. Raval, Michael Price, Brian Kinney, Tuvia Peretz) Evercore – Investment Banker (Stephen Goldstein, Roopesh Shah, Alan Finnie)
Ad hoc group of holders of the Debtors' 9.00% notes due March 2029 (the " March 2029 Notes ") and such ad hoc group, the " March 2029 Ad Hoc Group ")	Paul, Weiss, Rifkind, Wharton & Garrison LLP – Counsel (Sung Pak, William A. Clareman, Robert A. Britton, Lucian Wang) Ducera Partners LLC – Investment Banker (Eli Silverman, Sean Monaghan)
Wilmington Savings Fund Society, FSB, and certain lenders under the Debtors' prepetition credit facility (the " Credit Facility ")	Jones Day LLP – Counsel (Benjamin Rosenblum) FTI Consulting, Inc. – Financial Advisor (William Nolan, Christopher Goff, Eric Younger)
Ad hoc group (the " Unsecured Notes Ad Hoc Group ") of unsecured noteholders (the " Unsecured Notes ")	Glenn Agre LLP – Counsel (Andrew K. Glenn, Shai Schmidt, Kurt Mayr) Province, LCC – Financial Advisor (Daniel Moses, Frederick Chin, Tanner James)

Prepetition Capital Structure

Debt Instrument	Outstanding Principal Amount (\$ millions)	Interest Rate	Maturity
Non-Debtor CMBS Debt	177.3	7.79%	2028-2033
Credit Facility	425.0	S+3.50%	January 2027
March 2029 Notes	300.0	9.000%	March 2029
September 2029 Notes	610.0	9.000%	September 2029
March 2027 Notes	418.0	3.250%	March 2027
Total Company Secured Debt	1,930.3		
Total Debtor Secured Debt	1,753.0		
Priority Guaranteed Notes	14.4	8.000%	January 2030
Senior Notes due 2026	133.9	2.650%	June 2026
Senior Notes due 2027	78.3	2.400%	February 2027
Senior Notes due 2031	102.4	3.450%	October 2031
Senior Notes due 2050	162.0	6.375%	June 2050
Total Unsecured Debt	491.1		
Total Company Funded Debt	2,421.3		

Prepetition Debt Summary by Relevant Collateral

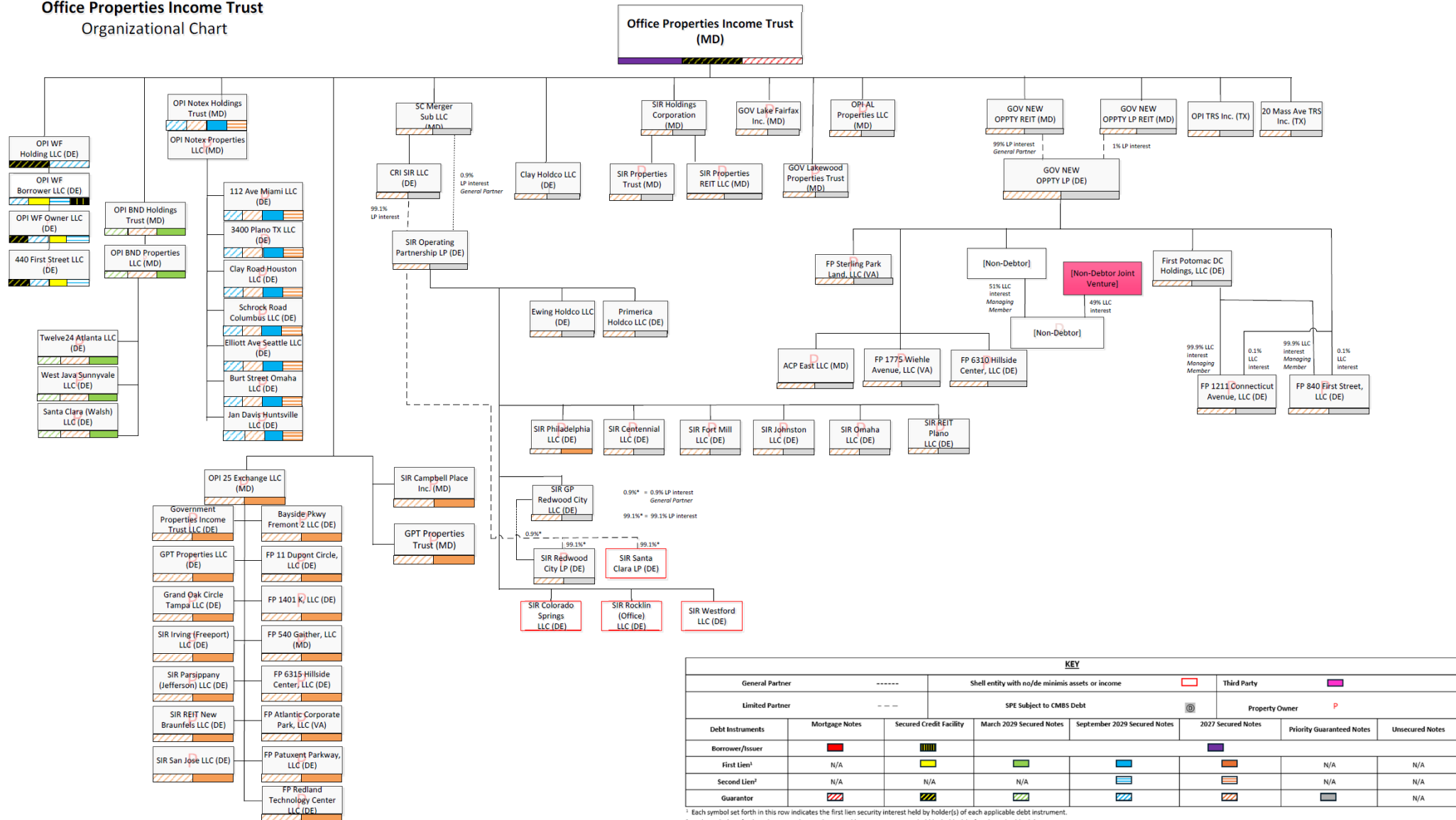
(\$ and sq. ft. in millions)

	A	B	C	D	E	F
First Lien Security	CMBS Debt	Credit Facility	March 2029 Notes	September 2029 Notes	March 2027 Notes	Unencumbered Properties
Building Count	7	19	17	19	35	25
1L Amount	\$177	\$425	\$300	\$610	\$418	—
Collateral Summary						
Relevant Debt Tranches	CMBS Debt ~\$177mm 1L	Credit Facility \$425mm 1L	March 2029 Notes \$300mm 1L	September 2029 Notes ~\$610mm 1L	March 2027 Notes ~\$418mm 1L	Priority Guaranteed Notes ~\$14mm GP
	March 2027 Notes ~\$418mm GH	September 2029 Notes ~\$610mm 2L	March 2027 Notes ~\$418mm GP	March 2027 Notes ~\$418mm 2L		March 2027 Notes ~\$418mm GP
	Unsecured Debt and all deficiency claims					

1L First Lien 2L Second Lien GH Guarantee from Holding Companies of 5 of 7 Mortgage Properties GP Guarantee from Property Owning Subsidiaries

Comprehensive Corporate Chart with Debt Overlay

Office Properties Income Trust Organizational Chart



KEY							
General Partner		-----	Shell entity with no/de minimis assets or income			Third Party	
Limited Partner		- - -	SPE Subject to CMBS Debt			Property Owner	
Debt Instruments	Mortgage Notes	Secured Credit Facility	March 2029 Secured Notes	September 2029 Secured Notes	2027 Secured Notes	Priority Guaranteed Notes	Unsecured Notes
Borrower/Issuer							
First Lien ¹	N/A					N/A	N/A
Second Lien ²	N/A	N/A	N/A			N/A	N/A
Guarantor							N/A

¹ Each symbol set forth in this row indicates the first lien security interest held by holder(s) of each applicable debt instrument.

² Each symbol set forth in this row indicates the second lien security interest held by holder(s) of each applicable debt instrument.

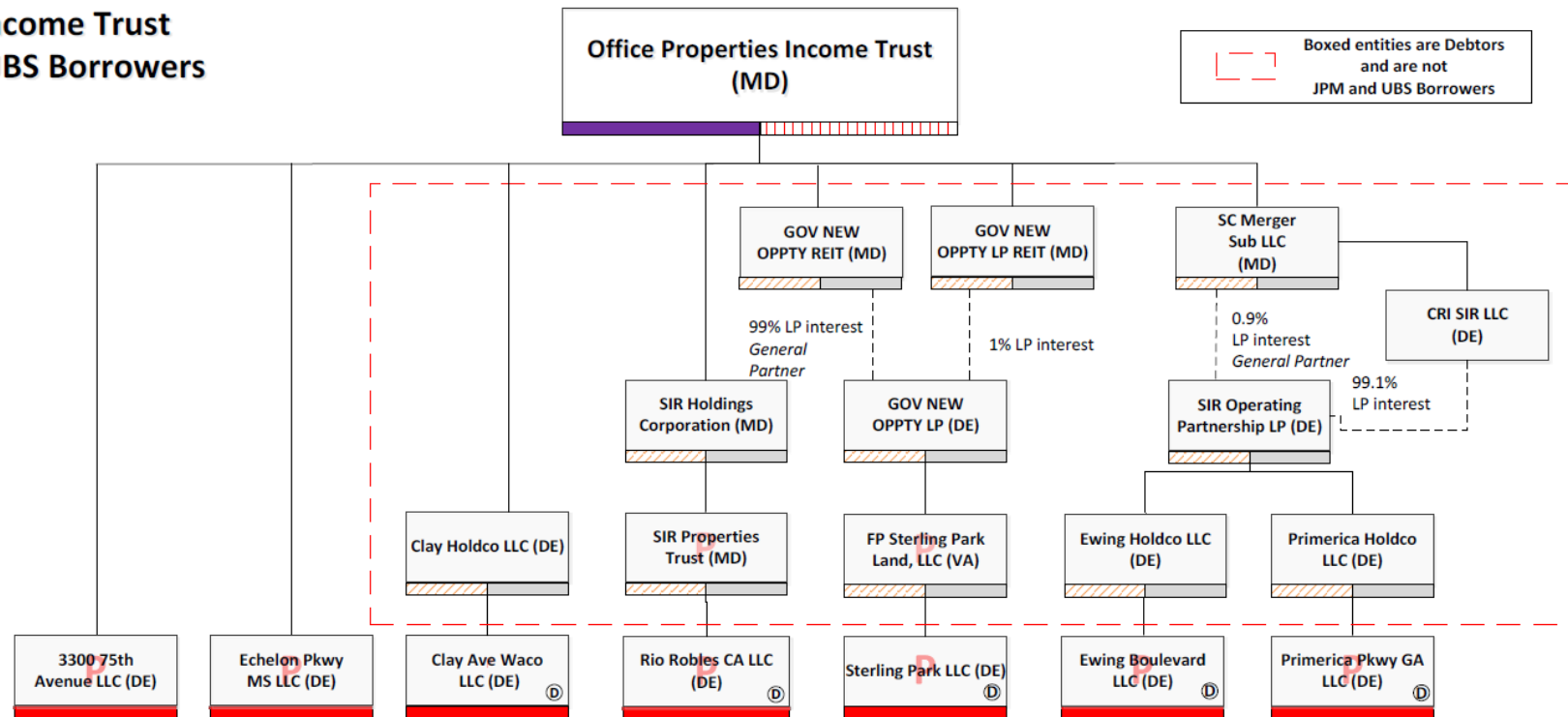
Organizational Chart by Collateral Basket

Non-Debtor CMBS Debt

Office Properties Income Trust
JPM Borrowers and UBS Borrowers

Reference: Debtor entities located in top center and middle of comprehensive corporate chart.

The seven entities outside of the dashed box are non-Debtor entities



KEY			
Limited Partner	---	SPE Subject to CMBS Debt	Property Owner
Debt Instruments	Mortgage Notes	March 2027 Notes	Priority Guaranteed Notes
Borrower/Issuer			
First Lien ¹	N/A		N/A
Second Lien ²	N/A		N/A
Guarantor			

¹ Each symbol set forth in this row indicates the first lien security interest held by holder(s) of each applicable debt instrument.

² Each symbol set forth in this row indicates the second lien security interest held by holder(s) of each applicable debt instrument.

Outstanding Face Amount

▪ \$177 million

1L Collateral Properties

▪ 7

Notes

Non-Debtor entities

- Certain mortgages sold into CMBS markets
- Loans administered by special servicers
- No new postpetition operating account as CMBS debt entities' cash management system is subject to DACAs in favor of credit facility agent and lenders

Organizational Chart by Collateral Basket

Credit Agreement

Office Properties Income Trust Credit Agreement Obligors

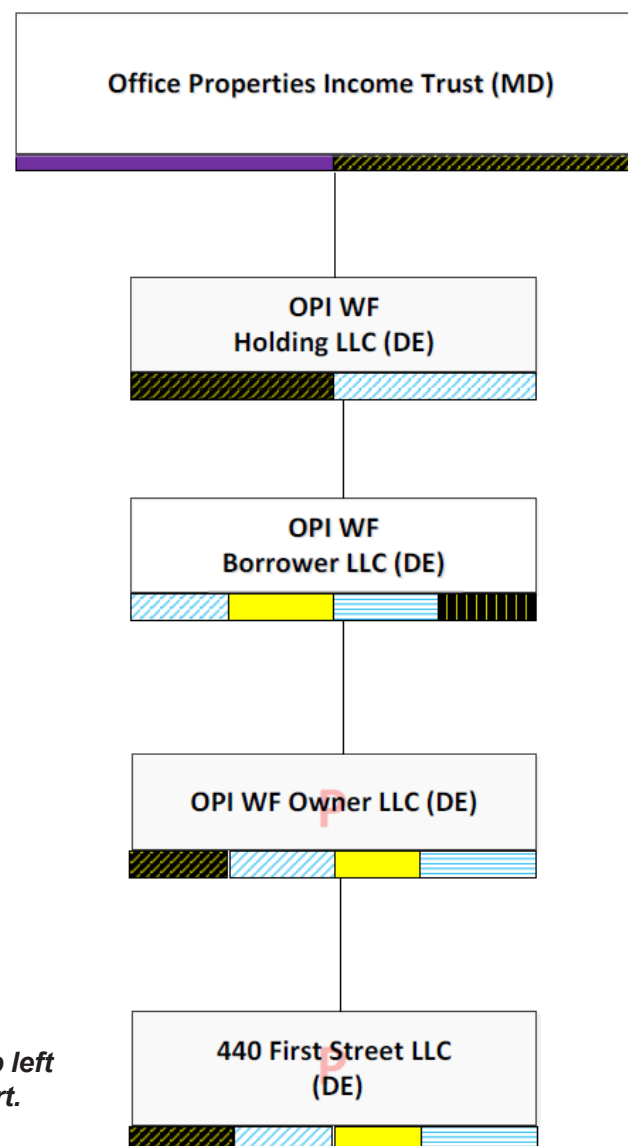
Outstanding Face Amount	▪ \$425 million
1L Collateral Properties	▪ 19
Advisors	▪ Jones Day, FTI
Independent Directors	▪ Kristine E. Eppes ▪ Michelle A. Dreyer
Notes	▪ No new postpetition operating account as Credit Agreement entities' cash management system is subject to DACAs in favor of credit facility agent and lenders

KEY		
Property Owner		
Debt Instruments	Credit Facility	September 2029 Notes
Borrower/Issuer		
First Lien ¹		
Second Lien ²	N/A	
Guarantor		

¹ Each symbol set forth in this row indicates the first lien security interest held by holder(s) of each applicable debt instrument.

² Each symbol set forth in this row indicates the second lien security interest held by holder(s) of each applicable debt instrument.

Reference: Entities located in top left of comprehensive corporate chart.



Organizational Chart by Collateral Basket

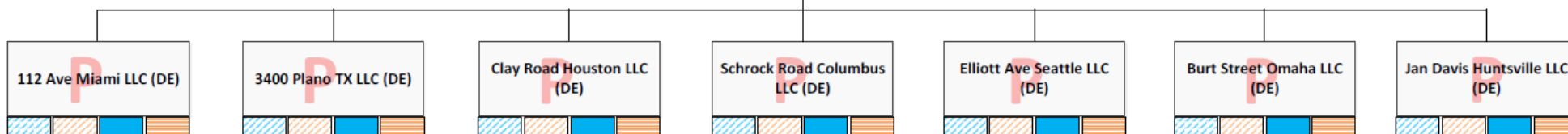
September 2029 Notes

Office Properties Income Trust
September 2029 Notes
Subsidiary Guarantors

Office Properties Income
Trust (MD)

OPI Notex Holdings
Trust (MD)

OPI Notex Properties LLC
(MD)



Outstanding Face
Amount

- \$610 million

1L Collateral
Properties

- 19

Advisors

- White & Case, Houlihan Lokey

Independent
Director

- Patrick Bartels

Reference: Entities located in top left
of comprehensive corporate chart.

Location of New Postpetition
Operating Account in favor of the
September 2029 Notes

KEY		
Property Owner		
Debt Instruments	September 2029 Notes	March 2027 Notes
Borrower/Issuer		
First Lien ¹		
Second Lien ²		
Guarantor		

¹ Each symbol set forth in this row indicates the first lien security interest held by holder(s) of each applicable debt instrument.

² Each symbol set forth in this row indicates the second lien security interest held by holder(s) of each applicable debt instrument.

Organizational Chart by Collateral Basket

March 2029 Notes

Office Properties Income Trust March 2029 Notes Subsidiary Guarantors

Outstanding Face Amount	▪ \$300 million
1L Collateral Properties	▪ 17
Advisors	▪ Paul Weiss, Ducera

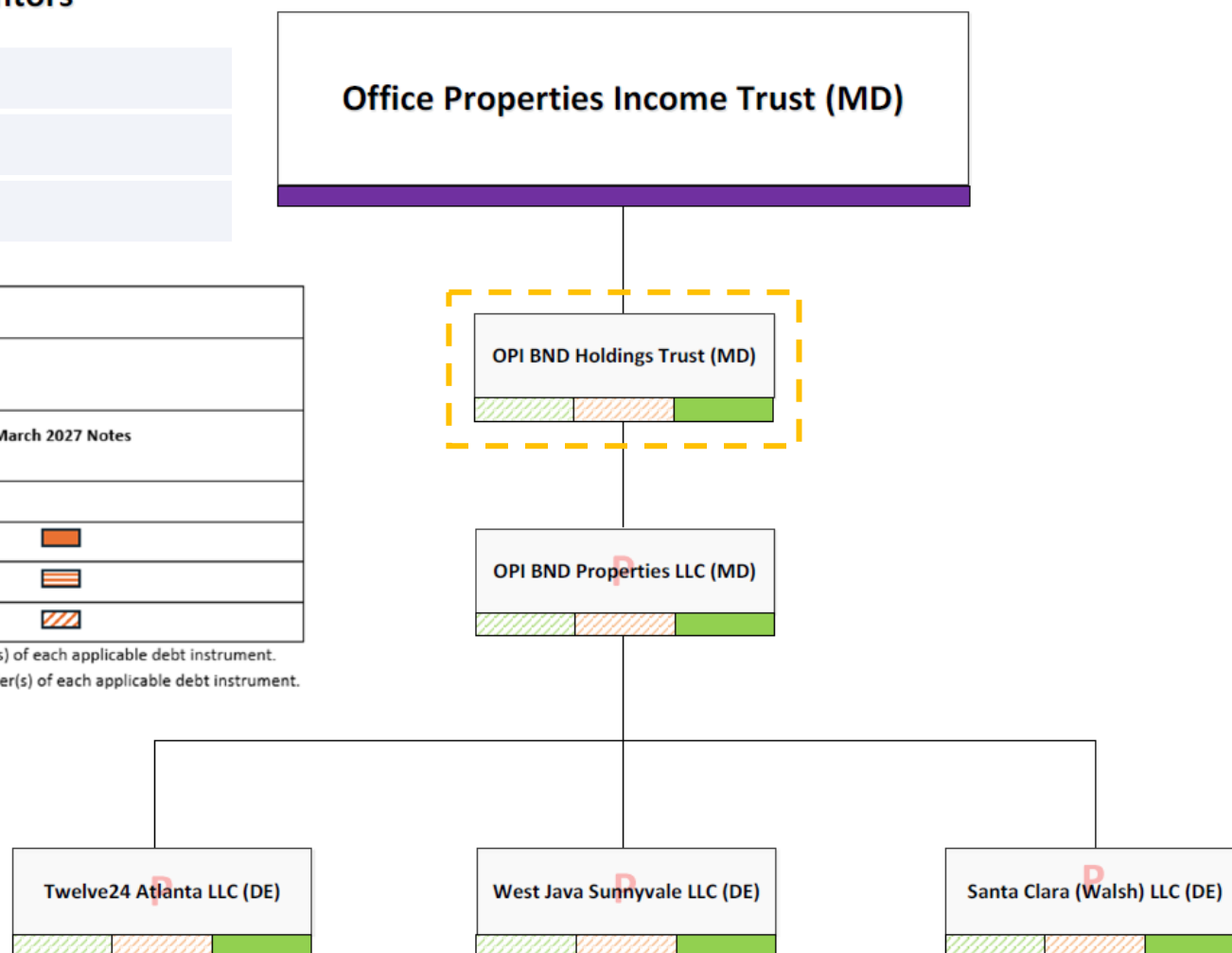
KEY		
Property Owner		
Debt Instruments	March 2029 Notes	March 2027 Notes
Borrower/Issuer		
First Lien ¹		
Second Lien ²	N/A	
Guarantor		

¹ Each symbol set forth in this row indicates the first lien security interest held by holder(s) of each applicable debt instrument.

² Each symbol set forth in this row indicates the second lien security interest held by holder(s) of each applicable debt instrument.

Location of New Postpetition
Operating Account in favor of the
March 2029 Notes

Reference: Entities located in top left
of comprehensive corporate chart.



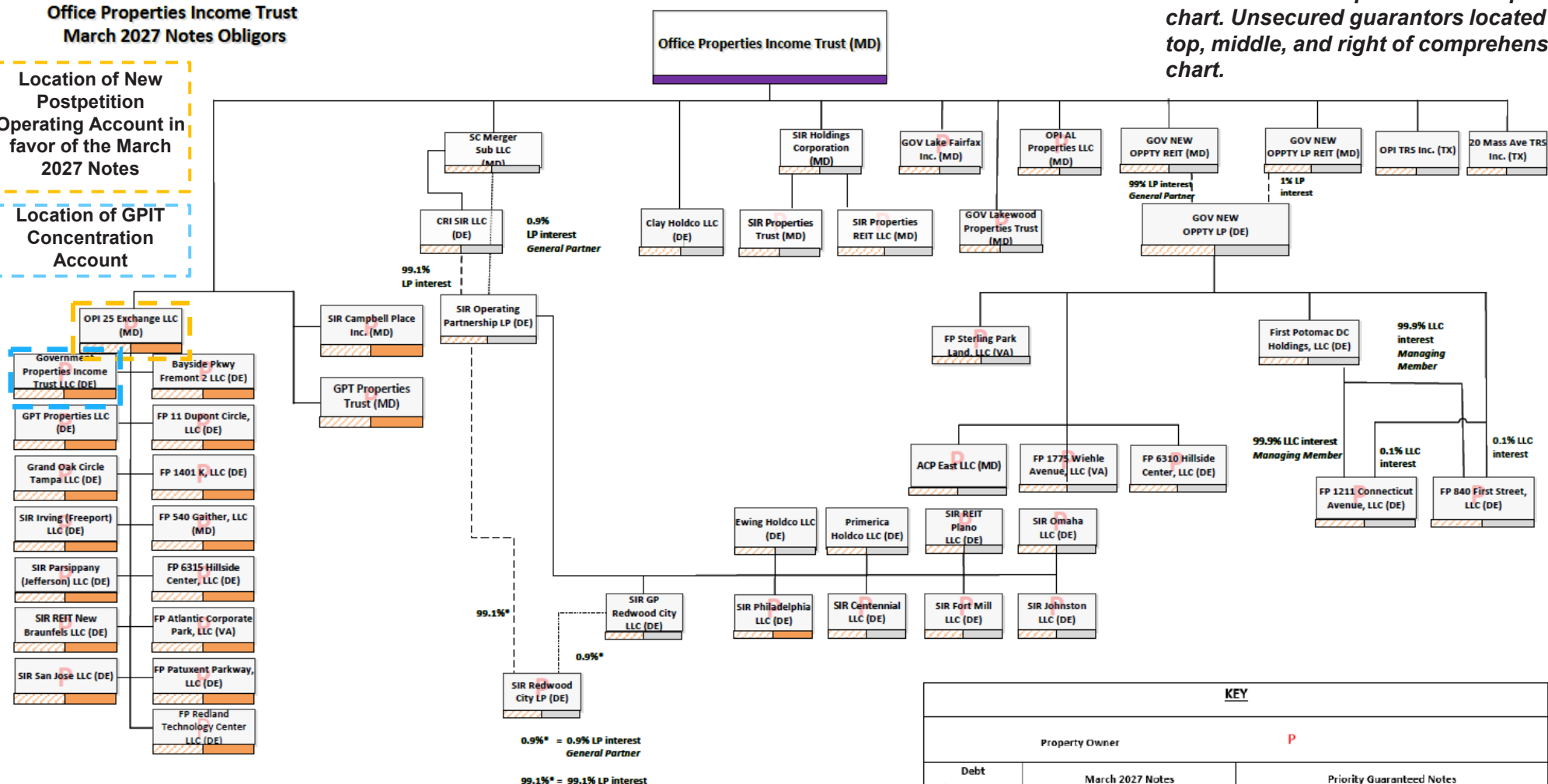
Organizational Chart by Collateral Basket

March 2027 Notes

Office Properties Income Trust
March 2027 Notes Obligors

Location of New
Postpetition
Operating Account in
favor of the March
2027 Notes

Location of GPIT
Concentration
Account



Reference: First lien obligors located in bottom left of comprehensive corporate chart. Unsecured guarantors located in top, middle, and right of comprehensive chart.

Outstanding Face Amount

▪ \$418 million

1L Collateral Properties

▪ 35

Advisors

▪ Milbank, Evercore

Independent Director

▪ Jill Frizzley

KEY		
Property Owner		
Debt Instruments	March 2027 Notes	Priority Guaranteed Notes
Borrower/Issuer		
First Lien ¹		N/A
Second Lien ²		N/A
Guarantor		

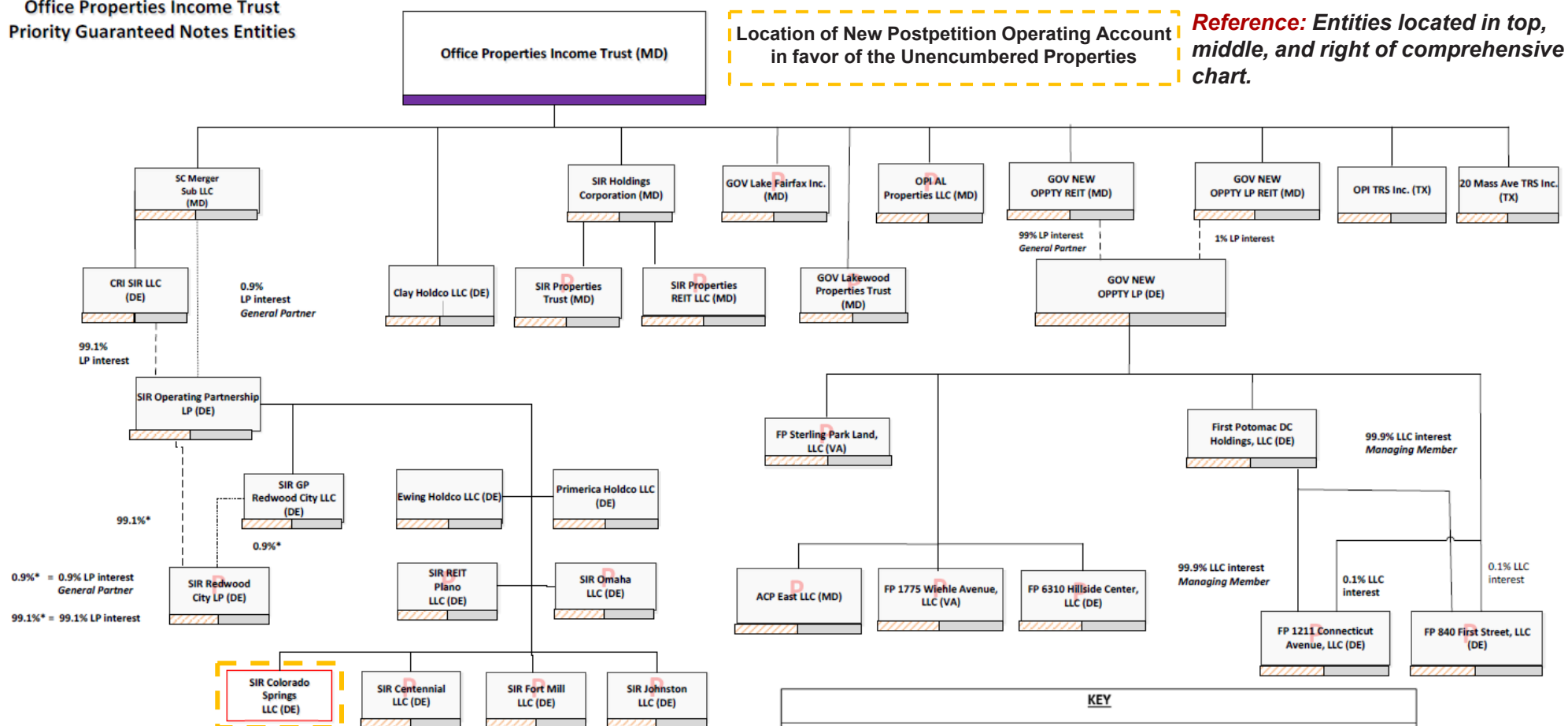
¹ Each symbol set forth in this row indicates the first lien security interest held by holder(s) of each applicable debt instrument.

² Each symbol set forth in this row indicates the second lien security interest held by holder(s) of each applicable debt instrument.

Organizational Chart by Collateral Basket

Priority Guaranteed Notes / Unencumbered Properties

Office Properties Income Trust
Priority Guaranteed Notes Entities



Outstanding Face Amount	▪ \$14.4 million
Collateral Properties	▪ 25
Advisors	▪ Glenn Agre, Province

KEY		
Property Owner P		
Debt Instruments	March 2027 Notes	Priority Guaranteed Notes
Borrower/Issuer		
First Lien ¹		N/A
Second Lien ²		N/A
Guarantor		

¹ Each symbol set forth in this row indicates the first lien security interest held by holder(s) of each applicable debt instrument.

² Each symbol set forth in this row indicates the second lien security interest held by holder(s) of each applicable debt instrument.

Events Leading to Chapter 11

- In recent years, the Company has faced a number of challenges that have put downward pressure on the Company's cash flows, liquidity, and ability to meet its debt service obligations under its current capital structure.
- **Office Real Estate Sector Headwinds.** The office industry has been adversely affected by shifts in office space utilization, including increased remote work arrangements and tenants consolidating their real estate footprint, as well as ongoing market and economic conditions. Notably, the Debtors have a significant footprint in areas affected by operations of the United States government.
- **Inflation, Interest Rates, Governmental Pressures.** Higher interest rates, lack of capital and financing for office properties, inflationary pressures, and recent government policies have caused disruptions in the financial markets, in turn affecting the financial condition of tenants and high interest rates under the Company's current debt.
- **Operational and Capital Structure Considerations.** The Company has more than \$1.1 billion in debt maturities in the next 24 months and significant ongoing debt service costs under various debt instruments in its capital structure. Interest expense for the first six months of 2025 was approximately \$105.9 million.

Prepetition Restructuring Efforts

- Since 2023, OPI has been working to right-size its capital structure, manage its maturity profile, and improve its property portfolio.
- ***Prepetition Capital Structure Transactions.*** In the last 20 months, OPI consummated several capital structure transactions, including:
 - a refinancing of and granting of security for its then-existing credit facility;
 - the issuance of the \$300 million March 2029 Notes and granting of security;
 - and various debt exchanges of certain of their then-existing unsecured notes, which resulted in the
 - September 2029 Notes;
 - March 2027 Notes; and
 - priority guaranteed notes due 2030 (the “***Priority Guaranteed Notes***”).
- ***Creditor Negotiations.*** The Debtors negotiated with the September 2029 Ad Hoc Group, March 2029 Ad Hoc Group, Credit Facility Agent, March 2027 Ad Hoc Group, and Unsecured Notes Ad Hoc Group prior to the petition date. Among potentially impaired creditors:
 - The Debtors reached an agreement with the September 2029 Ad Hoc Group.
 - The Debtors are very close to an agreement with the Unsecured Notes Ad Hoc Group.
 - The Debtors have not yet reached an agreement with the March 2027 Ad Hoc Group.

The Debtors' Prearranged Restructuring

- The Debtors initiated these cases to effectuate a comprehensive balance sheet restructuring to be implemented through a plan of reorganization.
- The proposed restructuring provides for:
 - certain members of the September 2029 Ad Hoc Group to provide \$125 million in new money DIP financing to fund the chapter 11 cases, repayable in reorganized equity at the Debtors' option;
 - the September 2029 Notes to convert their debt into equity and takeback debt;
 - The March 2027 Notes to receive their collateral properties, cash, or takeback debt in satisfaction of their secured claim, and equity or other consideration on account of their deficiency claim, if any; and
 - OPI's priority guaranteed and other unsecured notes to receive equity; while
 - leaving OPI's commercial mortgage-backed securities mortgage notes, credit facility (the "**Credit Facility**"), and March 2029 Notes in place on renegotiated terms or otherwise rendered unimpaired; and
 - providing a global process for the sale of certain properties slated for disposition.
- The restructuring would delever OPI's balance sheet by approximately \$1 billion, materially lowers OPI's go-forward debt service costs, and provides a process for the Debtors' to right-size their office portfolio by conveying or selling non-performing properties.

Restructuring Support Agreement Overview

		Terms
Treatment of Claims	Mortgage Debt	Reinstated, refinanced, or otherwise unimpaired
	Secured Credit Facility	Reinstated, refinanced, or otherwise unimpaired
	March 2029 Senior Secured Notes	Reinstated, refinanced, or otherwise unimpaired
	September 2029 Notes	<u>Secured Claim</u>: Maximum of \$420 million in takeback debt ("Secured Exit Notes") and reorganized common equity (at the plan equity value) valued at \$98 million \$300 million base Secured Exit Notes allocation, with an option for either equity or debt for remaining recovery based on DIP funding priority <u>Unsecured Deficiency Claim</u>: <i>Pro rata</i> share of Remaining Reorganized Common Equity and right to purchase reorganized common equity in the ERO at the plan equity value (subject to dilution by the Initial Equity Compensation)
	March 2027 Notes	<u>Secured Claim</u>: Certain properties, cash, takeback debt, or a combination thereof (at the Company's election) <u>Unsecured Deficiency Claim (if any)</u>: (a) <i>Pro rata</i> share of reorganized common equity remaining after accounting for such equity issued pursuant to the equity rights offering and in satisfaction of certain contractually or structurally senior claims ("Remaining Reorganized Common Equity"); and (b) right to purchase reorganized common equity in the equity rights offering ("ERO") at the plan equity value (subject to dilution by the initial equity compensation (the "Initial Equity Compensation") under the management incentive plan ("MIP")) <u>Primary Issues in These Cases</u>: - Treatment of original issue discount ("OID"); - Collateral value; and - Amount of claim

Restructuring Support Agreement Overview (cont'd)

		Terms
Treatment of Claims	Priority Guaranteed Notes	Reorganized common equity (up to the distributable value remaining at the issuers of such claims) after accounting for reorganized common equity issued pursuant to the ERO, if any, and in satisfaction of senior claims, subject to dilution by the Initial Equity Compensation
	Unsecured Notes ¹	<i>Pro rata</i> share of Remaining Reorganized Common Equity in a manner consistent with the provisions of section 1129(a)(9) of the Bankruptcy Code - Right to purchase reorganized common equity in the ERO at the plan equity value (subject to dilution by the Initial Equity Compensation)
	Other General Unsecured Claims Against Parent	Treatment in a manner consistent with the provisions of section 1129(a)(9) of the Bankruptcy Code
	Other General Unsecured Claims Against Subsidiary Debtors	Distributions of Remaining Reorganized Common Equity based on the distributable value, if any, of such subsidiaries after the payment in full of all senior claims
	Equity Interests in Parent	Cancelled

1. Treatment will change depending on finalizing settlement with Unsecured Notes Ad Hoc Group.

Restructuring Support Agreement Overview (cont'd)

		Terms
Other Material Terms	RMR Management Agreements	Amended and restated management agreements to be entered into on the effective date, as agreed by the restructuring support agreement ("RSA") parties as set forth in term sheet
	SEC Reporting Status	To be agreed by the RSA parties
	Releases / Exculpation	Customary release and exculpation provisions (including with respect to the members of the September 2029 Ad Hoc Group and their professionals), subject to the Debtors' ongoing investigation (Quinn Emanuel conducting investigation)
	Discharge / Injunction	Customary discharge and injunctive provisions
	Indemnification of Prepetition Directors, Officers, Managers, Trustee, <i>et al.</i>	All indemnification obligations in place as of the effective date of the plan for the current and former directors, officers, managers, trustees, and professionals of the Debtors shall be assumed and remain in full force and effect and shall survive unimpaired and unaffected

Restructuring Support Agreement Overview (cont'd)

		Terms
Other Material Terms	Director, Officer, Manager, and Trustee Tail Coverage	On the effective date of the plan, the Debtors shall be deemed to have assumed all unexpired directors', managers', trustees', and officers' liability insurance policies (including any "tail policy" on terms no less favorable than the Debtors' existing director, officer, manager, and employee coverage)
	Tax Matters	The RSA parties shall cooperate in good faith to implement the restructuring transactions in a tax-efficient manner for the parties
	Means of Implementation	- In addition to seeking standard first day relief, the Debtors will, on the date the chapter 11 cases are filed (the "Petition Date"), file an adversary proceeding seeking disallowance of any unamortized OID associated with the March 2027 Notes as of the Petition Date - The RSA also contemplates seeking bankruptcy court approval to consummate certain property sales during the cases to optimize the Debtors' real estate portfolio
	Governance	Reorganized board of reorganized OPI to be composed of (a) six individuals appointed by the September 2029 Ad Hoc Group and (b) one individual appointed by RMR
	Settlement Payment	Settlement payment of \$10 million to Helix Partners Management LP and Redwood Capital Management LLC (the "September 2029 Ad Hoc Group SteerCo") paid prior to the Petition Date
	RSA Fee	2% RSA fee applied to September 2029 Notes holdings that sign the RSA, subject to \$10 million cap

Secured Exit Notes Overview (cont'd)

		Terms
Takeback Notes	Type and Amount	Senior secured notes in the aggregate principal amount of \$420.0 million
	Holders	On the plan effective date, the holders of the September 2029 Notes
	Issuer	Office Properties Income Trust
	Guarantors	Same guarantors obligated on the September 2029 Notes, entities that were unencumbered as of the Petition Date and obligated on the DIP Facility, and additional entities whose guarantee of the Secured Exit Notes does not conflict with any prepetition secured debt that is unimpaired or refinanced under the Plan
	Guarantors and Security	Same collateral securing the September 2029 Notes; a first lien security interest in the same real property collateral owned by the unencumbered entities obligated on the DIP facility; and all additional assets securing the DIP facility, which security or pledge does not conflict with the terms of any prepetition secured debt that is unimpaired or refinanced under the plan, as agreed by the Debtors and the required September 2029 Noteholders
	Maturity	5 years from the effective date of the plan
	Interest	10%, payable in cash
	Optional Redemption	Any time at 100% of principal amount plus accrued and unpaid interest
	Mandatory Redemption	Issuer required to redeem the notes in an amount equal to the net cash proceeds of certain asset dispositions to be agreed and recovery events to be agreed
	Amortization	None
	Financial or Maintenance Covenants	None
	Events of Default	Customary for financings of this type

DIP Facility Overview

The Debtors' chapter 11 cases are funded by a \$125 million DIP facility provided by the September 2029 Ad Hoc Group

		Terms
New Money DIP Facility	Type	Multiple-draw secured term loan facility (the "DIP Facility")
	Size	\$125 million; with \$10 million available in a single draw following entry of the order approving the DIP Facility on an interim basis (the "Interim DIP Order") and \$115 million available following entry of the order approving the DIP Facility on a final basis (the "Final DIP Order")
	Guarantors	Each Debtor entity other than the Credit Facility loan parties
	Backstop	The September 2029 Ad Hoc Group SteerCo will backstop full amount of the DIP Facility
	Participation	To be syndicated and made available to all holders of the September 2029 Notes based on their pro rata share of holdings, pursuant to backstop mechanics to be determined by the September 2029 Ad Hoc Group SteerCo and conditional upon acceptance of RSA
	Rate	12.00% cash interest

DIP Facility Overview (cont'd)

		Terms
New Money DIP Facility	Liens/Collateral Package	- To the extent legally permissible, first-priority liens on all unencumbered assets of the Debtors and the segregated account into which DIP proceeds will be funded, and junior liens on certain encumbered assets of the Debtors. - Super-priority administrative claim
	Fees	<u>Upfront Fee</u>: 2.25% payable in kind, and which may be paid in cash or reorganized equity at a 37% discount to plan value, at the Debtors' election <u>Anchor Capital Commitment Fee</u>: 10.00%, payable to the September 2029 Ad Hoc Group SteerCo in cash or reorganized equity at plan value, at the Debtors' election <u>Back-End Fee</u>: 5.75%, payable in cash or reorganized equity at plan value, at the Debtors' election
	Milestones	As set forth in the RSA
	Treatment	- To receive up to \$25 million ERO B proceeds (if any) - Remainder to be paid in cash or convert to equity at 37% discount to plan value, at the Debtors' election.

Postpetition Debt Summary by Relevant Collateral

(\$ and sq. ft. in millions)

	A	B	C	D	E	F
First Lien Security	CMBS Debt	Credit Facility	March 2029 Notes	September 2029 Notes	March 2027 Notes	Unencumbered Properties
Building Count	7	19	17	19	35	25
1L Amount	\$177	\$425	\$300	\$610	\$418	—
Collateral Summary						
Relevant Debt Tranches	CMBS Debt ~\$177mm 1L	Credit Facility \$425mm 1L	March 2029 Notes \$300mm 1L	September 2029 Notes ~\$610mm 1L	March 2027 Notes ~\$418mm 1L	DIP \$125mm 1L
	March 2027 Notes ~\$418mm GH	September 2029 Notes ~\$610mm 2L	DIP \$125mm 2L	March 2027 Notes ~\$418mm 2L	DIP \$125mm 2L	Priority Guarantee Notes ~\$14mm GP
			March 2027 Notes ~\$418mm GP	DIP \$125mm 3L		March 2027 Notes ~\$418mm GP
	Unsecured Debt and all deficiency claims					

1L

First Lien

2L

Second Lien

3L

Third Lien

GH

Guarantee from Holding Companies of 5 of 7 Mortgage Properties

GP

Guarantee from Property Owning Subsidiaries

RMR Management Agreements Term Sheet Overview

		Terms
New Money DIP Facility	Scope	- Amendment and restatement of existing business management agreement and property management agreement (collectively, the “A&R Agreements”); to be agreed and entered into on the effective date of the plan (the “Effective Date”) - Modification of existing agreement and assumption of A&R Agreements will not result in any claim by RMR (the “Manager”) in the chapter 11 cases
	Management Fees	<u>Business Management Fee</u>: \$14 million per year until the second anniversary of the Effective Date and an amount to be agreed thereafter <u>Property Management Fee</u>: 3% property management fee and 5% construction supervision fee consistent with the existing agreement
	Equity Compensation	Management incentive plan providing for 2% of reorganized common equity to be issued to the Manager on the Effective Date and entitlement to receive up to an additional 8% of reorganized common equity based on satisfaction of certain financial tests to be agreed by the reorganized board and disclosed in the plan supplement
	Expense Reimbursement	- Reimbursement of the Manager’s reasonable legal fees in connection with entry into the term sheet, the A&R Agreements, the RSA, and the other definitive documentation in connection with the RSA in connection with the filing of the chapter 11 cases, in an amount to be reasonably agreed by the parties - Reimbursement of expenses related to OPI and its subsidiaries consistent with the original management agreements, subject to diligence
	Term	Five years from the Effective Date, with automatic one-year renewals
	Termination	- Customary termination for convenience and for cause provisions, and in the event the parties have not agreed on the Business Management Fee for the third year of the initial term - Termination fee equal to the aggregate amount of Business Management Fees that would have been paid to the Manager through the second anniversary of the Effective Date less amounts actually paid (i.e., \$28 million less amounts actually paid)

OID Litigation

- The Debtors have commenced by adversary complaint litigation seeking disallowance of any unamortized OID associated with the March 2027 Notes as of the Petition Date (the “**March 2027 Notes Claims Challenge**”), which would reduce the March 2027 Notes claim by up to approximately \$76.4 million.
- The pleadings asserting the March 2027 Notes Claims Challenge will reserve the Debtors’ rights to seek additional disallowance of the obligations incurred and the invalidation of the security interests granted in connection with the March 2027 Notes.

OID at Issuance	Unamortized OID at 10/31/2025
\$135.1 million	\$76.4 million

- **Relevant Issues.** The litigation will likely turn on (a) whether the OID falls in an exception to disallowance and (b) if disallowed, the appropriate calculation of the “issue price” of the notes, which will determine the amount of OID generated in the exchange at issuance and in turn inform the unamortized amount as of the Petition Date.
- **Company Position.** The Company’s position in the litigation is that (a) the exchange offer for the March 2027 Notes does not fall in one of the few exceptions to disallowance of OID and (b) the appropriate calculation for the issue price is the methodology used for tax purposes, which was agreed in the relevant exchange agreement publicly disclosed in the associated tax documentation at the time of the exchange.

March 2027 Notes Issues Context

- After extensive prepetition negotiations, the Debtors have commenced litigation to challenge the OID on the March 2027 Notes.
 - The exchange granting the liens for the March 2027 Notes occurred on December 11, 2024.
 - The OID issues on the March 2027 Notes are novel.
 - **The Debtors have informed all parties that they would like to mediate commencing immediately.**
 - Absent a near-term settlement, the Debtors believe that the March 2027 Notes will advocate for delay, litigation, and attempt to create substantial fees as leverage in these cases to attempt to “run out the clock” on unmatured OID.
- The March 2027 Notes’ liens are not primed by the proposed DIP financing. The DIP financing is being sought on an entirely junior basis with respect to the March 2027 Notes’ collateral, and thus the collateral is unlikely to experience any diminution in value or otherwise be harmed.
- The March 2027 Notes have a new, segregated postpetition operating account at their obligors. The Debtors are accounting for intercompany claims and overhead payments on an entity-by-entity basis.
- The March 2027 Notes will not suffer diminution in value prior to the final hearing on the DIP financing, at a minimum, and potentially ever during these cases. Their collateral is real estate, which will continue to be managed. The March 2027 Notes may move for additional adequate assurance if warranted.
- The March 2027 Notes are receiving adequate protection in the form of adequate protection liens and claims that are senior to all other adequate protection claims and DIP superpriority claims on their collateral, as well as cash accounting and care and maintenance of their properties.
- In addition to being unnecessary, current payment of interest and fees on the March 2027 Notes as additional adequate protection is not a ripe issue for today. The next interest payment on the March 2027 Notes is due on December 31, 2025.
- Any issues regarding the appropriate interest rate on the March 2027 Notes (3.25% non-default rate / 12% default rate) should be reserved.
- The March 2027 Notes’ DIP financing proposal would leave the Debtors without any means to exit chapter 11. The March 2027 Notes’ proposal is also costlier as it would not permit the Debtors to realize additional value by contesting the OID on the March 2027 Notes.
- Any other issues raised by the March 2027 Notes can and should be resolved at a final hearing on the DIP financing.

Key Case Milestones

